Order from: lucychedrick@gmail.com

BE FORWARD CO., LTD.

1-32-2 KOJIMACHO, CHOFU-SHI, TOKYO 182-0026 JAPAN
TEL: +81 42 440 3440 (Ricky)

INVOICE

Messrs. LUCY CHEDRICK KOMBA
DAR ES SALAAM DAR ES SALAAM
TANZANIA
TEL: +255788078410
EMAIL: lucychedrick@gmail.com

DATE: 03-June-2024
INVOICE NUMBER: 3026908

Shipping mark

BE FORWARD
DAR ES SALAAM

Shipped per : TBA (V-TBA)
On or about : TBA

From : MOJI, JAPAN
To : DAR ES SALAAM, TANZANIA
Enrollment:
Payment : 100% of amount before shipment by T/T remittance with T/T copy submission;
100% of amount before shipment by online bank transfer with "Remittance Wording of A Telegram" submission;
100% of amount before shipment by online bank transfer with a screengrab of bank transaction submission;
100% of amount before shipment by direct payment at Seller's local settlement agent's office with the agent's written acknowledgement of the receipt of the payment.

Bank Account:

BANK NAME :	SUMITOMO MITSUI BANKING CORPORATION
SWIFT CODE :	SMBCJPJT
BRANCH NAME :	WEBSITE BRANCH by SWIFT directly(BRANCH CODE:988)
BRANCH ADDRESS :	1-37-12 FUDA CHOFU-SHI TOKYO 182-0024 JAPAN
ACCOUNT NUMBER :	988-5000158
BENEFICIARY NAME :	BE FORWARD CO.,LTD.

IMPORTANT! YOUR INVOICE NUMBER ' 3026908 ' MUST BE ON THE TT-SLIP!
Without your invoice number, shipping will be delayed!!

Condition:
* We will hold the reservation of the vehicle for 48 hours from the time of the Invoice and Purchase Agreement issuance.
* The reservation cannot be extended unless the TT Copy (Telegraphic Transfer Copy) of the full payment is received at Seller's end within the 48 hour deadline.
* Any and all banks' charges and handling fees shall be borne and paid by the Purchaser.
* For currencies on the invoice other than the Japanese yen, please ask your bank NOT to convert the payment into Japanese yen.
* Payments must be made to BE FORWARD JAPAN so its a customer's responsibility for any losses if its via our certified local offices.
* This Invoice is subject to the Vehicle Purchase Agreement attached hereto.

Ref.No.	Description	Quantity	Unit Price	Amount
BT174991	2009/8 NISSAN X-Trail DBA-NT31 CHASSIS NO.: NT31-050559 TRANSMISSION: Automatic FIXED NUMBER: 5 WEIGHT: 1,520 KG G.WEIGHT : 1,795 KG ENGINE CAPACITY: 1,990 CC COLOR: Black MILEAGE: 105,730 KM FUEL TYPE: Petrol COUNTRY OF ORIGIN: Japan DIMENSION(LxWxH): 13.726 M3(459x178x168 cm)*	1 UNIT	9,500.00	US$ 9,500.00

TOTAL : 1 UNIT(S)

C&F DAR ES SALAAM
US$ 9,500.00

Please specify and emphasize to your bank NOT to convert the payment into Yen.

*The actual dimension may differ from the above one.

山川博功
BE FORWARD CO.,LTD.

VEHICLE PURCHASE AGREEMENT

Invoice Number: 3026908 **WGS230808.837**

Ref. Number: BT174991

Agreement Between:

Buyer:
Bernard James Ngowi
DAR ES SALAAM DAR ES SALAAM
Tanzania

And

Seller:
BE FORWARD Co., Ltd.
1-32-2 Kojimacho, Chofu City,
Tokyo 182-0026, Japan
Ricky

WITNESSETH:

WHEREAS, Seller desires to sell to Buyer the used vehicle (the "Vehicle"), identified on the Proforma Invoice referenced above (the "Proforma Invoice") and to which this Vehicle Purchase Agreement is attached, and agrees to make the exporting arrangements for the Vehicle on behalf of Buyer; and,
WHEREAS, Buyer has agreed to purchase and accept delivery of the Vehicle from Seller for the price and other terms specified in the Agreement (as defined below), and agrees that Seller is to arrange the Vehicle's export.
NOW THEREFORE, in consideration of the mutual agreements contained herein, the parties hereto agree as follows:

Applicability of Agreement:
The terms and conditions of this Vehicle Purchase Agreement are a part of the Proforma Invoice (which are referred to together as this "Agreement") and are effective upon issuance of the Proforma Invoice. Upon the earlier of (a) the execution by Buyer of any Proforma Invoice; or (b) the request by Buyer for the issuance of any Proforma Invoice (including Buyer's generation of any Proforma Invoice via any Seller Site (as defined below)), Buyer shall be deemed to have read, understood, and agreed to any and all provisions contained in this Agreement and, therefore, Buyer shall be deemed to be bound by this Agreement.

Purchase and Sale of Vehicle:
Seller's obligation to sell the Vehicle to Buyer is subject to all terms and conditions of this Agreement. Buyer understands and agrees that Seller's obligation to sell the Vehicle is subject to a number of factors, including availability of the Vehicle and Seller's receipt of payment for the Vehicle.
Seller shall not be obligated to sell the Vehicle to Buyer until all of the following conditions (the "Sale Conditions") have been satisfied: (a) Buyer has remitted the Full Payment (as defined below), subject to Seller's right (in its sole discretion) to agree to any installment or other payment plan with Buyer (the payment required to satisfy Seller's obligation to sell the Vehicle to Buyer is referred to as the "Required Payment"); (b) Seller has received and accepted the Required Payment; (c) Seller has confirmed that the Vehicle is in inventory and is not subject to a pre-existing obligation to sell to another prospective purchaser; and (d) Seller has notified Buyer in writing (which may be by email, or in some cases made via displays on Seller Sites directed at Buyer) that the Vehicle is available and has been taken out of stock and reserved for Buyer, and that the Required Payment has been received and accepted by Seller. Upon the satisfaction of such Sale Conditions, ownership of the Vehicle shall pass to Buyer, subject to the terms and conditions of this Agreement.
Without limiting the foregoing, Buyer understands and agrees that Seller's inventory of vehicles available for sale may be maintained by third-party used car dealers engaged by Seller, and vehicles are sold on a first-come, first-served basis. Accordingly, vehicles identified online through websites maintained by or on behalf of Seller ("Seller Sites") may no longer be available at the time a Proforma Invoice is issued and this Agreement is entered into. Execution of this Agreement by Seller does not guarantee that the identified Vehicle will be in stock and available when the final order for such Vehicle is submitted, and therefore does not create any binding obligation on Seller to sell the Vehicle to Buyer. If the Vehicle is not available for purchase, then due to the failure to satisfy the Sale Conditions Seller will have no obligation to sell the Vehicle to Buyer. In such event, Seller will so notify Buyer. Buyer may decide to purchase an alternative vehicle from the Seller if such alternative vehicle is available, and such purchase shall be represented by a new Proforma Invoice and shall be subject to the terms and conditions of a new Vehicle Purchase Agreement for such Vehicle.
Following issuance of a Proforma Invoice, Seller may, in its discretion, reserve the Vehicle for Buyer for a limited time determined by the Seller in its sole discretion from the date of the Proforma Invoice issuance (the "Reservation Period"), provided that such reservation shall not be deemed to be confirmation that the Vehicle is in stock and has not been reserved for another buyer, and that Seller shall have no obligation to sell such Vehicle to Buyer unless and until all Sale Conditions have been fully satisfied within the Reservation Period. During the Reservation Period, Seller will not sell the Vehicle to another prospective Buyer who has been issued a proforma invoice for the Vehicle with a later date/time than the date/time of Buyer's Proforma Invoice. If the Sale Conditions are not satisfied prior to the expiration of the Reservation Period, Seller shall not be deemed to have any obligation to continue to hold the Vehicle for Buyer, and Seller may sell the Vehicle to any other person.
Any breach of Buyer's payment obligations, regardless of the reason, may automatically result in cancellation of Buyer's purchase order without Buyer's prior consent.

Definition of Buyer:
When used in this Agreement, the term "Buyer" shall include the Buyer identified above, together with any broker, agent, or other representative engaged or appointed by such Buyer (a "Buyer Representative") to negotiate or facilitate any aspect of the Vehicle's purchase, shipping and delivery, if any, to the final local destination identified on the Proforma Invoice.
Any act of any such Buyer Representative shall be deemed an act of Buyer, and Buyer shall be responsible for all acts and omissions undertaken by any such Buyer Representative. Seller shall be fully entitled to rely on any instruction provided by any Buyer Representative, and will have no liability to Buyer, any Buyer Representative, or third party for any action (or inaction) undertaken (or not taken) by Seller at the direction or instruction of Buyer or any Buyer Representative.

Use of Seller's Agent(s):
Seller will be entitled to engage independent third parties to perform certain services in connection with or ancillary to the performance of this Agreement. Any such third parties are referred to herein as "Seller's Agent," which term shall strictly be defined as an individual or an organization that provides, with Seller's prior approval, any of the following: (1) any services to be provided by Seller pursuant to this Agreement, (2) any verbal or physical support, on behalf of Seller, in connection with this Agreement, including in connection with any dispute between Buyer and Seller, or (3) any services ancillary to this Agreement related to the sale, exportation, and/or delivery of the Vehicle or any related products or services. For the avoidance of doubt, no Seller's Agent shall be deemed or considered to be a branch, subsidiary, or other affiliate of Seller for purposes of this Agreement or otherwise.

Vehicle Condition, Descriptions, and Information:
Seller uses reasonable efforts to provide accurate descriptions of the Vehicle's condition on the Seller Sites. However, all Vehicle images, descriptions, and related information provided on the Seller Sites are for informational purposes, and Seller does not guarantee the accuracy of such images, descriptions, and information. Seller may obtain Vehicle information (including information related to the Vehicle's condition and history) from third parties, and Seller is not responsible for verifying or otherwise confirming any such information. Buyer agrees that any reliance on the Vehicle listings and descriptions on the Seller Sites is at Buyer's own risk, and is subject to the disclaimers of warranty and limitations of liability set forth in this Agreement. Buyer understands and agrees that it is Buyer's responsibility to inspect the Vehicle, and to notify Seller in writing of any concerns relating to the Vehicle, prior to Seller's issuance of the Proforma Invoice. Therefore, by entering into this Agreement, Buyer expressly acknowledges and agrees that it is purchasing the Vehicle in used, "AS IS" condition. Without limiting any other provision of this Agreement:

a) Seller makes no representation, warranty, or guarantee regarding the Vehicle or the Vehicle's condition.
b) Seller does not represent, warrant, or guarantee that any Vehicle description (including Vehicle condition, history, parts and features, availability, and pricing) as set forth on any Seller Sites or in any other documentation or material delivered to Buyer is complete, accurate, reliable, or error free.
c) The Vehicle is not represented as being in a road worthy condition, mechanically sound, or maintained at any guaranteed level of quality. The Vehicles may not be fit for use as a means of transportation, and may require substantial repairs and expense.

Delivery of Vehicle; Completion of Purchase:
Buyer shall be responsible for picking up (or arranging for a third party to pick up) the Vehicle from the port of discharge within the time designated by Seller. If Buyer fails to do so, Seller (or any Seller's Agent) shall be entitled to pick up the Vehicle and store it, at Buyer's expense, at a facility designated by Seller.
If Buyer has failed to pay the Full Payment at the time the Vehicle is delivered to the port of discharge, Seller (or any Seller's Agent), may hold the Vehicle until such time as the Full Payment (plus any storage charges) has been made.

Risk of Loss:
Risk of loss of the Vehicle shall pass from Seller to Buyer on the earlier of (1) the Vehicle being loaded on board at the port of loading, or (2) the date the Full Payment for the Vehicle is received and accepted by Seller, and neither Seller nor Seller's Agent(s) shall be responsible for or liable to Buyer or any other person for any and all damage to, missing parts or features, or other defects in the condition of the Vehicle that may arise or may be identified from and after such date, regardless of the reasons for any such damage, loss, or defect, or for any other malfunction or issue arising in connection with the Vehicle.
Without limiting the foregoing, neither Seller nor Seller's Agent(s) shall be responsible or held liable, regardless of the reason, for any losses, damages, defects or malfunctions caused or incurred, directly or indirectly, by any act or omission of Buyer (including any Buyer Representative). If any act or omission of Buyer (including any Buyer Representative) occurs that results in damage to or loss of the Vehicle, or that in any manner prevents or may materially delay exportation or delivery of the Vehicle, Seller may, at its sole option, halt any further action to export or deliver the Vehicle, repossess ownership of the Vehicle, and list the Vehicle for resale and/or sell the Vehicle to a third party of Seller's choice.

DISCLAIMER/LIMITATION OF LIABILITY:
Except to the extent a Vehicle is subject to a warranty provided by Seller and purchased by Buyer (which warranty is governed by the terms available at https://www.beforward.jp/support/warranty-coverage), to the fullest extent permitted by applicable law, all vehicles sold by Seller, including the Vehicle, are sold "AS-IS WHERE-IS" AND WITHOUT ANY WARRANTY, EXPRESS OR IMPLIED. SELLER HEREBY EXPRESSLY DISCLAIMS ANY AND ALL REPRESENTATIONS, WARRANTIES, AND GUARANTEES, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY WARRANTIES OF ACCURACY, RELIABILITY, TITLE, NON-INFRINGEMENT, FITNESS FOR A PARTICULAR PURPOSE, OR MERCHANTABILITY.
Neither Seller nor any Seller's Agent nor their respective affiliates, officers, directors, employees, agents, and representatives (collectively, "Seller Parties") shall be liable to Buyer or any other party for any direct, indirect, special, consequential, or punitive damages arising out of or in connection with this Agreement or otherwise in connection with the sale, exportation, delivery, and/or use of the Vehicle, including any loss, damage, cost, or expense caused by, arising out of, or relating to: (a) the use of the Vehicle by Buyer or any other party, including any of the foregoing resulting from driving conditions, road conditions, or driver operation of the Vehicle; (b) any disparities or differences between the Vehicles and any description or pictures of the Vehicle on the Seller Sites; and (c) any lack of parts, features, or functionality on the Vehicle that were removed due to applicable export or shipping regulations.
Without limiting the foregoing, and notwithstanding any other terms and conditions of this Agreement or any statute of limitations provided under applicable law, all rights of Buyer arising under this Agreement, and all obligations and liabilities of Seller and any Seller Parties, shall be extinguished on the date that is six months following the date of the Proforma Invoice.

Proforma Invoice; Buy Now Feature:
The Proforma Invoice (which is a part of this Agreement) contains the financial details, including the Full Payment (including the total price, shipping cost, and any other expenses) agreed to be paid by Buyer with respect to the sale of the Vehicle, along with any applicable vehicle specifications and any shipping conditions that are available at the time of issuing the Proforma Invoice.
Certain Seller Sites may contain an online point of sale (a "Buy Now Feature"). Buyer may, at its election, utilize the Buy Now Feature to generate, download, and/or print a Proforma Invoice that will include the terms and conditions of sale (including Vehicle price, shipping cost, and other expenses agreed to be paid by Buyer), and that otherwise incorporates all terms and conditions of this Agreement. By using the Buy Now Feature to generate a Proforma Invoice, Buyer shall be deemed to have understood and agreed to all such terms and conditions.

Payment:
Except as otherwise provided below, Buyer shall pay the full amount listed on the Proforma Invoice in a one (1)-time payment, to or as directed by Seller on the Proforma Invoice (or other written instructions of Seller) (the "Full Payment," which includes any and all fees and charges associated with the purchase of the Vehicle, including transfer and shipping charges, fees, auction charges, bank charges, and handling fees, all of which are the sole responsibility of Buyer and all of which are included in the definition of Full Payment). Upon confirmed receipt of the Full Payment by Seller or Seller's Agent, as acknowledged by Seller in writing,